



Province of Alberta

CHILD, YOUTH AND FAMILY ENHANCEMENT ACT

COURT RULES AND FORMS REGULATION

Alberta Regulation 39/2002

With amendments up to and including Alberta Regulation 216/2025

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Office Consolidation

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(Consolidated up to 216/2025)

ALBERTA REGULATION 39/2002

Child, Youth and Family Enhancement Act

COURT RULES AND FORMS REGULATION

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Definition

1 In this Regulation “Act” means the *Child, Youth and Family Enhancement Act*.

AR 39/2002 s1;145/2004

Court practice and procedure

2(1) In any matter not provided for in the Act or the regulations under it, the Court may follow the Alberta Rules of Court and the procedures of the Court of King’s Bench.

(2) The Court may give directions respecting any practice or procedure in the Court.

(3) The Court on application may

- (a) vary a rule of practice or procedure,
- (b) refuse to apply a rule of practice or procedure, or
- (c) direct that some other practice or procedure be followed.

AR 39/2002 s2;145/2004;207/2014;218/2022

Non-compliance with this Regulation

3(1) Unless the Court so directs, non-compliance with this Regulation does not render any act or proceeding void, but the act or proceeding may be set aside either wholly or in part as irregular or amended or otherwise dealt with.

(2) No proceeding shall be defeated on the ground of an alleged defect of form.

Personal service

4(1) Personal service is effected on an individual by leaving with the individual a copy of the document to be served.

(2) Personal service is effected on a corporation by leaving a copy of the document to be served with the mayor, reeve, president, chairman or other head officer by whatever name that person is known, or with the manager, office manager, cashier, secretary or agent.

Application

5(1) An application under the Act, other than under section 126.3 of the Act, is to be commenced by completing and filing the form prescribed in the Schedule with the clerk of the Court before the Court hears the application.

(2) Notwithstanding subsection (1), the Court may hear an application before the relevant form is filed with the clerk of the Court.

(3) Notwithstanding subsection (1), notice of an application is not insufficient merely because the relevant form was not filed before it was served on the person notified.

AR 39/2002 s5;207/2014

Appeals of Court of Justice Orders**Appeal of a court order**

5.1(1) To appeal an order of the court, other than an order under section 126.3 of the Act, to the Court of King's Bench pursuant to section 114 of the Act, a party shall

- (a) file a notice of appeal in Form 40 with the court clerk of the Court of King's Bench, and
- (b) serve a copy of the filed notice of appeal on
 - (i) the guardian of the child other than a director;
 - (ii) a person who was a guardian of the child immediately before the order was made;
 - (iii) the child, if the child is 12 years of age or older;
 - (iv) if a secure services order is being appealed, the child who is the subject of the secure services order; and
 - (v) a director.

(2) The filed notice of appeal must be served personally or in the manner directed by the Court of King's Bench.

(3) The notice of appeal must be filed and served within 30 days after the date on which the order being appealed was made or refused.

AR 276/2009 s2;164/2010;207/2014;218/2022;76/2023

Appeal of a consent order

5.2 No order made by the court with the consent of the parties is subject to appeal, except with the permission of the Court of King's Bench.

AR 276/2009 s2;85/2016;218/2022

Duty of clerks

5.3(1) The court clerk of the Court of King's Bench must

- (a) assign a return date for an initial appearance at the time of filing the notice of appeal, and
- (b) promptly give a copy of the notice of appeal to the clerk of the court that made the order being appealed.

(2) Immediately on receipt of the notice of appeal, the clerk of the court that made the order must forward the order, together with the filed documents relating to the order, including exhibits, to the court clerk of the Court of King's Bench.

AR 276/2009 s2;164/2010;218/2022

Transcript

5.4(1) The appellant must order and pay for a transcript of the hearing before the court that made the order being appealed.

(2) The appellant must file with the Court of King's Bench a copy of the transcript and serve a copy on the respondent within 3 months after the filing of the notice of appeal unless an order has been made by the Court of King's Bench prior to the expiration of the 3-month period extending the time for filing the transcript.

AR 276/2009 s2;218/2022

Non-compliance by the appellant

5.5 If the appellant has not complied with section 5.4, the Court of King's Bench may order that the appeal be dismissed without further notice to the appellant.

AR 276/2009 s2;218/2022

Filing of affidavits of service

5.6 The appellant must file with the Court of King's Bench the affidavits of service of the notice of appeal.

AR 276/2009 s2;218/2022

Evidence

5.7(1) The record for the hearing of the appeal is composed of

- (a) the documents provided by the clerk of the court under section 5.3(2), and
- (b) the transcript of the hearing before the court that made the order being appealed.

(2) The Court of King's Bench may consider any further evidence it may require or permit to be given upon application by any party.

AR 276/2009 s2;218/2022

Appeal memoranda

5.8(1) After the Court of King's Bench has fixed a date for the hearing of the appeal, the appellant must, not later than noon on the 21st day before the date scheduled for the hearing of the appeal, file and serve on the respondent an appeal memorandum setting out

- (a) the facts in brief,
- (b) the relief sought by the appellant, and
- (c) the argument and authorities on which the appellant intends to rely in support of the grounds set out in the notice of appeal.

(2) The respondent must, not later than noon on the 7th day before the date scheduled for the hearing of the appeal, file and serve on the appellant an appeal memorandum setting out

- (a) any additional facts being relied upon,
- (b) the respondent's position on the relief sought by the appellant,
- (c) the relief, if any, sought by the respondent by way of cross appeal, and
- (d) the argument and authorities on which the respondent intends to rely.

AR 276/2009 s2;218/2022

Appeals of Appeal Panel Decisions

Appeal of an Appeal Panel decision

5.9(1) To appeal a decision of an Appeal Panel pursuant to section 120.1 of the Act, a party shall

- (a) file a notice of appeal in Form 41 with the court clerk of the Court of King's Bench, and
- (b) serve a copy of the filed notice of appeal on the respondent personally or in the manner directed by the Court of King's Bench.

(2) The notice of appeal must be filed and served within 45 days after the date on which the decision being appealed was made.

AR 276/2009 s2;164/2010;218/2022

Duty of clerks

5.91 The court clerk of the Court of King's Bench must assign a return date for an initial appearance at the time of filing the notice of appeal.

AR 276/2009 s2;164/2010;218/2022

Duty of appellant

5.92(1) If an official court reporter recorded the appeal panel proceedings, the appellant must order and pay for a transcript of the hearing before the Appeal Panel.

(2) The appellant must file with the Court of King's Bench and serve on the respondent a copy of the transcript within 3 months after the filing of the notice of appeal unless an order has been made by the Court of King's Bench prior to the expiration of the 3-month period extending the time for filing.

(3) The appellant must file with the Court of King's Bench and serve on the respondent a complete copy of the record before the Appeal Panel and a copy of the Appeal Panel's decision within 3 months after the filing of the notice of appeal unless an order has been made by the Court of King's Bench prior to the expiration of the 3-month period extending the time for filing.

AR 276/2009 s2;164/2010;218/2022

Non-compliance by the appellant

5.93 If the appellant has not complied with section 5.92, the Court of King's Bench may order that the appeal be dismissed without further notice to the appellant.

AR 276/2009 s2;218/2022

Filing of affidavits of service

5.94 The appellant must file with the Court of King's Bench the affidavits of service of the notice of appeal.

AR 276/2009 s2;218/2022

Evidence

5.95(1) The record for the hearing of the appeal consists of

- (a) the complete record before the Appeal Panel that is required to be filed by the appellant under section 5.92, and
- (b) the transcripts of the hearing, if any are available.

(2) The Court of King's Bench may consider any further evidence it may require or permit to be given upon application by any party.

AR 276/2009 s2;218/2022

Appeal memoranda

5.96(1) After the Court of King's Bench has fixed a date for the hearing of the appeal, the appellant must, not later than noon on the 21st day before the date scheduled for the hearing of the appeal, file and serve on the respondent an appeal memorandum setting out

- (a) the facts in brief,
- (b) the relief sought by the appellant, and
- (c) the argument and authorities on which the appellant intends to rely in support of the grounds set out in the notice of appeal.

(2) The respondent must, not later than noon on the 7th day before the date scheduled for the hearing of the appeal, file and serve on the appellant an appeal memorandum setting out

- (a) any additional facts being relied upon,
- (b) the respondent's position on the relief sought by the appellant,
- (c) the relief, if any, sought by the respondent by way of cross appeal, and
- (d) the argument and authorities on which the respondent intends to rely.

AR 276/2009 s2;218/2022

No application procedure in Act

6 If no procedure for an application to the Court is provided in the Act, the application is to be commenced by completing and filing Form 26 in the Schedule.

AR 39/2002 s6;145/2004

Forms

7 The forms to be used in any application to the Court under the Act are the forms in the Schedule.

8 Repealed AR 145/2004 s5.

Repeal

9 The *Court Rules and Forms Regulation* (AR 184/85) is repealed.

10 Repealed AR 216/2025 s2.

Coming into force

11 This Regulation comes into force on April 1, 2002.

Schedule**Form 1****Notice and Application to Terminate
a Permanent Guardianship Agreement**

In the Alberta Court of Justice
in the Matter of an Application under section 13
of the *Child, Youth and Family Enhancement Act*.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
_____, born (date-yyyy/mm/dd)
_____, born (date-yyyy/mm/dd)

1 My name is (name of applicant).
My birthdate is (date-yyyy/mm/dd).
I am the child(ren)'s parent. My address is (address).

2 Notice

I am applying to the Court for an order terminating the permanent guardianship agreement regarding the child(ren). I will ask the Court to return the child(ren) to my care.

The Court hearing will be at (address) on (date-
yyyy/mm/dd). The Judge will hear my application as soon as possible after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

At the end of the hearing, the Judge may make the order. The Judge may make an order different from what I apply for. If you do not attend the Court hearing, the Judge may still make an order.

3 Application

I am applying for an order terminating the permanent guardianship agreement.

- ☐ I am applying for an order:
- ☐ declaring that I am a parent of the child(ren).
 - ☐ appointing me as a guardian of the child(ren).
 - ☐ directing that the child(ren) be placed in the custody of (name(s)).
 - ☐ terminating the guardianship of (name(s)).

4 Affidavit

In support of my application, I make oath and say that a permanent guardianship agreement was entered into on (date-
yyyy/mm/dd) and;

I am applying to terminate the permanent guardianship agreement because: _____.

SWORN BEFORE ME at the _____ of _____)
_____, in the Province of Alberta, the _____)
____ day of _____, _____.) (Applicant's Signature)
_____) (date-yyyy/mm/dd)
(Commissioner for Oaths _____)
in and for the Province of Alberta _____)

Form 2 Notice and Application for a Supervision Order

In the Alberta Court of Justice
in the Matter of an Application under
section ☐ 16 or ☐ 21 and 28 of the
Child, Youth and Family Enhancement Act.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
_____, born (date-yyyy/mm/dd)
_____, born (date-yyyy/mm/dd)

1 My name is (name of applicant).

I have the authority to act for a director.

2 Notice

I am applying to the Court for a supervision order regarding the child(ren). I will ask the Court to allow the director to supervise the child(ren) and anyone who lives with the child(ren).

The Court hearing will be at (address) on (date - yyyy/mm/dd). The Judge will hear my application as soon as possible after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

At the end of the hearing, the Judge may make the order. The Judge may make an order different from what I apply for. If you do not attend the Court hearing, the Judge may still make an order.

3 Application

I am applying for a (duration) month supervision order regarding the child(ren).

4 Affidavit

In support of my application, I make oath and say that:

The child(ren) needs intervention. To protect the child(ren)'s safety, security or development, the child(ren) and (name(s)) who live with the child(ren) need supervision because: _____.

I recommend the following terms of supervision: _____.

SWORN BEFORE ME at the _____ of _____, in the Province of Alberta, the _____ day of _____, _____.) (Applicant's Signature)
_____) (date-yyyy/mm/dd)
(Commissioner for Oaths _____)
in and for the Province of Alberta _____)

Form 3
Notice and Application for a Temporary
Guardianship Order and Terms

In the Alberta Court of Justice in the Matter of an Application
under section ☐ 17 or ☐ 21 and 31 of the
Child, Youth and Family Enhancement Act.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd), cumulative time in
care (duration) days
_____, born (date-yyyy/mm/dd), cumulative time in
care (duration) days
_____, born (date-yyyy/mm/dd), cumulative time in
care (duration) days

1 My name is (name of applicant).

I have the authority to act for a director.

2 Notice

I am applying to the Court for a temporary guardianship order regarding the child(ren). I will ask the Court to make the director a guardian of the child(ren) for a temporary period of time.

The Court hearing will be
at (address) on (date - yyyy/mm/dd). The Judge will hear
my application as soon as possible after (time), in Courtroom
number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

At the end of the hearing, the Judge may make the order. The Judge may make an order different from what I apply for. If you do not attend the Court hearing, the Judge may still make an order.

3 Application

I am applying for a (duration) month temporary guardianship order regarding the child(ren), including the following terms:

- ☐ the access the child(ren) will have with (name(s)).
- ☐ the conditions under which the director shall consult with the guardian on matters affecting the child(ren).
- ☐ that (name(s)) will participate in treatment or remedial programs, as recommended by the director.
- ☐ that (name(s)) be assessed to determine whether that person can properly take care of the child(ren), if the child(ren) returns to live with that person.
- ☐ the director recommends that the focus of the assessment(s) should be _____.

4 Affidavit

In support of my application, I make oath and say that:

The child(ren) needs intervention. To protect the child(ren)'s safety, security or development, the child(ren) cannot remain with the guardian because: _____.

I believe that within a reasonable amount of time:

- ☐ the child(ren) can be returned to the guardian, or
- ☐ the child(ren) will be able to live without a guardian.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) (Applicant's Signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta))

Form 4 Notice and Application for Terms of a Temporary Guardianship Order

In the Alberta Court of Justice in the Matter of an
 Application under section 31 of the *Child,
 Youth and Family Enhancement Act*.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)

- 1** My name is (name of applicant).
- ☐ I am the child.
- ☐ My relationship to the child(ren) is (e.g. guardian). My birthdate is (date-yyyy/mm/dd). My address is (address).
- ☐ I have the authority to act for a director.

2 Notice

I am applying to the Court for an order setting out the terms for the temporary guardianship order regarding the child(ren).

The Court hearing will be at (address) on (date yyyy/mm/dd). The Judge will hear my application as soon as possible after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

At the end of the hearing, the Judge may make the order. The Judge may make an order different from what I apply for. If you do not attend the Court hearing, the Judge may still make an order.

3 Application

I am applying for an order setting out terms for the temporary guardianship order regarding the child(ren) as follows:

- ☐ the access the child(ren) will have with (name(s)).
- ☐ the conditions under which the director shall consult with the guardian on matters affecting the child(ren).
- ☐ that (name(s)) will participate in treatment or remedial programs, as recommended by the director.
- ☐ that (name(s)) be assessed to determine whether that person can properly take care of the child(ren), if the child(ren) returns to live with that person.
- ☐ the director recommends that the focus of the assessment(s) should be _____.

4 Affidavit

In support of my application(s), I make oath and say that:

The child(ren) is(are) the subject of a temporary guardianship order granted on (date-yyyy/mm/dd) for a period of (duration).

An order setting out terms for the temporary guardianship order is requested because: _____

SWORN BEFORE ME at the _____ of _____, in the Province of Alberta, the _____ day of _____, _____.)

(Commissioner for Oaths in and for the Province of Alberta)

(Applicant's Signature)

(date-yyyy/mm/dd)

Form 5
Notice and Application for a Permanent
Guardianship Order and Access Order

In the Alberta Court of Justice in the Matter of an
Application under section ☐ 18 or ☐ 21, and 34 of the
Child, Youth and Family Enhancement Act.

Regarding the child(ren)

_____, born _____, cumulative time in
care _____ days

_____, born _____, cumulative time in
care _____ days

_____, born _____, cumulative time in
care _____ days

- 1** My name is (name of applicant).
I have the authority to act for a director.

2 Notice

I am applying to the Court for a permanent guardianship order regarding the child(ren). I will ask the Court to make the director the guardian for the child(ren) permanently.

The Court hearing will be at (address) on (date - yyyy/mm/dd). The Judge will hear my application as soon as possible after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

At the end of the hearing, the Judge may make the order. The Judge may make an order different from what I apply for. If you do not attend the Court hearing, the Judge may still make an order.

3 Application

I am applying for a permanent guardianship order regarding the child(ren).

☐ I am applying for an order setting out the access the child(ren) will have with (name(s)).

4 Affidavit

In support of my application, I make oath and say that:

The child(ren) needs intervention. To protect the child(ren)'s safety, security or development, the child(ren) cannot live with the guardian because: _____.

☐ An order setting out the access the child(ren) will have with (name(s)) is requested because: _____.

I do not believe that the child(ren) can be returned to the guardian within a reasonable time.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) (Applicant's Signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta))

Form 6
Notice and Application for Access Under
a Permanent Guardianship Order

In the Alberta Court of Justice in the Matter of an
 Application under section 34 of the *Child,*
Youth and Family Enhancement Act.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)

1 My name is (name of applicant).

☐ I am the child.

☐ My relationship to the child(ren) is (e.g. former guardian).

My birthdate is (date-yyyy/mm/dd). My address is (address).

☐ I have the authority to act for a director.

2 Notice

I am applying to the Court for an order for access. I will ask the Court to grant an order setting out the access with the child(ren).

The Court hearing will be at (address) on (date - yyyy/mm/dd). The Judge will hear my application as soon as possible after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

At the end of the hearing, the Judge may make the order. The Judge may make an order different from what I apply for. If you do not attend the Court hearing, the Judge may still make an order.

3 Application

I am applying for an order setting out the access the child(ren) will have with (name(s)).

4 Affidavit

In support of my application, I make oath and say that:

The child(ren) is(are) the subject of a permanent guardianship order granted on (date-yyyy/mm/dd).

☐ An order setting out the access the child(ren) will have with (name(s)) is requested because: _____.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) (Applicant's Signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta)

Form 7
Application for an Apprehension Order

In the Alberta Court of Justice in the Matter of an
Application under section 19 of the *Child,*
Youth and Family Enhancement Act.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
_____, born (date-yyyy/mm/dd)
_____, born (date-yyyy/mm/dd)

1 My name is (name of applicant).

I have the authority to act for a director.

2 Application

I am applying for an order:

- ☐ authorizing the director to apprehend the child(ren).
- ☐ authorizing the director or * _____, and any peace officer called on to assist, to enter, by force if necessary, the place or premises specified in my affidavit below, and to search for and apprehend the child(ren).
- ☐ authorizing the director or * _____, and any peace officer called on to assist, to enter, by force if necessary, the place or premises specified in my affidavit below, and to search for and remove the child(ren) for the purpose of returning the child(ren) to the custody of the director.

*(*Fill in this space only if someone who is not a director's delegate will be apprehending the child(ren).)*

3 Affidavit

In support of my application, I make oath and say that:

- ☐ I have reasonable and probable grounds to believe that the child(ren) needs intervention because: _____.
- ☐ I have reasonable and probable grounds to believe that the child(ren) may be found at the following address: _____ (address) _____.
- ☐ An application for apprehension order regarding the child(ren) was previously applied for and denied on (date-yyyy/mm/dd).
- ☐ The child(ren) was(were) in the custody of the director and left, or was(were) removed from that custody without the consent of the director. I have reasonable and probable grounds to believe that the child(ren) may be found at: _____ (address) _____.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) (Applicant's Signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta))

Form 8

In the Alberta Court of Justice
 in the Matter of

_____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)

A Child(ren) within the Meaning of the
Child, Youth and Family Enhancement Act

Heard Before

☐ The Honourable Justice _____ at (time) a.m./p.m. on
 _____, (day of the week), the
☐ Justice of the Peace _____ (number) day of
 _____ (month), (year)
 at _____, Alberta.

FACSIMILE OF APPREHENSION ORDER

(name of applicant), having authority to act for a director, has
 applied for an order authorizing the apprehension of the child(ren);

AND on being satisfied that the requirements of section 19 of the
 Act have been complied with, and

- ☐ the applicant has reasonable and probable grounds to believe
 that the child(ren) is(are) in need of intervention;
- ☐ the child(ren) is(are) in the custody of a director, has(have)
 left or been removed from that custody without the consent
 of the director and the director has reasonable and probable
 grounds to believe that the child(ren) may be found in a
 place or premises;

IT IS ORDERED THAT the director, or any person authorized by
 the director, may apprehend the child(ren) forthwith;

IT IS ORDERED THAT the director or (name), and any peace officer called on to assist, may enter (place or premises) using force if necessary, in order to search for and apprehend the child(ren).

(name of justice or justice of the peace)

Form 9
Notice and Application for an Order
Returning an Apprehended Child

In the Alberta Court of Justice in the Matter of an
 Application under section 21 of the *Child,*
Youth and Family Enhancement Act.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)

1 My name is (name of applicant).

I have the authority to act for a director.

2 Notice

I am applying to the Court for an order returning the child(ren) to the custody of the guardian. I will ask the Court to return custody of the child(ren) to the guardian.

The Court hearing will be at (address) on (date-yyyy/mm/dd). The Judge will hear my application as soon as possible after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

At the end of the hearing, the Judge may make the order. The Judge may make an order different from what I apply for. If you do not attend the Court hearing, the Judge may still make an order.

3 Application

I am applying for an order returning the child(ren) to the custody of the guardian.

4 Affidavit

In support of my application, I make oath and say that:

The child(ren) was(were) apprehended on (date-yyyy/mm/dd).

I believe that the child(ren) can be returned to the guardian because:_____.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) (Applicant's Signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta))

Form 10
Notice and Application for an Order Placing
an Apprehended Child in the
Custody of Another Province

In the Alberta Court of Justice in the Matter of an
 Application under section 21 of the *Child,*
Youth and Family Enhancement Act.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)

1 My name is (name of applicant).

I have the authority to act for a director.

2 Notice

I am applying to the Court for an order placing the child(ren) in the custody of child welfare authorities in the province of (name of province).

The Court hearing will be at (address) on (date-yyyy/mm/dd). The Judge will hear my application as soon as possible after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

At the end of the hearing, the Judge may make the order. The Judge may make an order different from what I apply for. If you do not attend the Court hearing, the Judge may still make an order.

3 Application

I am applying for an order placing the child(ren) in the custody of child welfare authorities in the province of (name of province).

4 Affidavit

In support of my application, I make oath and say that:

The child(ren) was(were) apprehended on (date-yyyy/mm/dd).

I believe that the child(ren) should be placed in the custody of child welfare authorities in the province of (name) because: _____.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) (Applicant's Signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta))

Form 11 Notice and Application for a Custody Order

In the Alberta Court of Justice in the Matter of an
 Application under section 21.1 of the *Child,
 Youth and Family Enhancement Act*.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)

1 My name is (name of applicant).

I have the authority to act for a director.

2 Notice

I am applying to the Court for a custody order regarding the child(ren). I will ask the Court to give custody of the child(ren) to the director, until the Court decides the application for temporary or permanent guardianship under section 21.

The Court hearing will be
 at (address) on (date - yyyy/mm/dd). The Judge will hear
 my application as soon as possible after (time), in Courtroom
 number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

At the end of the hearing, the Judge may make the order. The Judge may make an order different from what I apply for. If you do not attend the Court hearing, the Judge may still make an order.

3 Application

I am applying for a custody order regarding the child(ren), including the following terms:

- ☐ the access the child(ren) will have with (name(s)) during the custody order.
- ☐ that the child(ren) (name(s)) be assessed.
- ☐ that (name), (relationship), (name), (relationship), be assessed to determine whether that person can properly take care of the child(ren) if they are given custody of the child(ren).

☐ the director recommends that the focus of the assessment(s) should be _____.

4 Affidavit

In support of my application, I make oath and say that:
I am applying for a custody order regarding the child(ren) because the child(ren) has(have) been apprehended, and should remain in the care of the director until the application for guardianship under section 21 has been determined by a Judge.

☐ I am requesting term(s) for access the child(ren) will have with (name(s)) during the custody order because: _____.

☐ I am requesting that (name(s)) be assessed because: _____.

SWORN BEFORE ME at the _____ of _____,
_____, in the Province of Alberta, the _____ day of _____, _____.)
_____) (Applicant's Signature)
_____) (date-yyyy/mm/dd)
(Commissioner for Oaths)
in and for the Province of Alberta)

Form 12 Notice and Application for an Order Authorizing Treatment of an Apprehended Child

In the Alberta Court of Justice in the Matter of an
Application under section 22.1 of the *Child,
Youth and Family Enhancement Act*.

Regarding the child

_____, born (date-yyyy/mm/dd)

1 My name is (name of applicant).

I have the authority to act for a director.

2 Notice

I am applying to the Court for a treatment order regarding the child.
I will ask the Court to allow the director to authorize treatment for the child.

The Court hearing will be
at (address) on (date - yyyy/mm/dd). The Judge will hear
my application as soon as possible after (time), in Courtroom
number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

At the end of the hearing, the Judge may make the order. The Judge may make an order different from what I apply for. If you do not attend the Court hearing, the Judge may still make an order.

3 Application

I am applying for an order authorizing (*describe treatment*):
 _____ for the child.

4 Affidavit

In support of my application, I make oath and say that:

The child was apprehended on _____ (date-yyyy/mm/dd).

The guardian refuses to consent to the treatment described in the application.

The treatment being recommended by _____ (name of physician or dentist) of _____ (address) is in the best interest of the child because: _____.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) _____ (Applicant's Signature)
 _____ (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta) _____

Form 13

In the Alberta Court of Justice
 in the Matter of

_____, born _____ (date-yyyy/mm/dd)

A Child within the Meaning of the
Child, Youth and Family Enhancement Act

Heard Before

☐ The Honourable Justice _____ at _____ (time) a.m./p.m. on _____ (day of the week), the _____

☐ Justice of the Peace _____ (number) day of _____ (month), _____ (year)

at _____, Alberta.

FACSIMILE OF TREATMENT ORDER

_____, (name of applicant), having authority to act for a director, has applied for an order authorizing treatment of the child;

AND on being satisfied that

The requirements of section 22.1 of the Act have been complied with, and the treatment recommended by (name of physician or dentist) is in the best interests of the child.

IT IS ORDERED THAT the child shall undergo treatment as described below: _____.

(name of justice or justice of the peace)

Form 14
Notice and Application for an Order Authorizing Treatment
of a Child under a Temporary Guardianship Order or a
Permanent Guardianship Order or Agreement

In the Alberta Court of Justice in the Matter of an
Application under section 22.2 of the *Child,*
Youth and Family Enhancement Act.

Regarding the child

_____, born (date-yyyy/mm/dd)

1 My name is (name of applicant).

I have the authority to act for a director.

2 Notice

I am applying to the Court for a treatment order regarding the child.
I will ask the Court to allow the director to authorize treatment for the child.

The Court hearing will be
at (address) on (date - yyyy/mm/dd). The Judge will hear
my application as soon as possible after (time), in Courtroom
number (number).

If you want to speak to the Judge about my application, you must
attend the hearing.

**At the end of the hearing, the Judge may make the order. The Judge
may make an order different from what I apply for. If you do not
attend the Court hearing, the Judge may still make an order.**

3 Application

I am applying for an order authorizing (describe treatment)
_____ : for the child.

4 Affidavit

In support of my application, I make oath and say that the child:

☐ is the subject of a temporary guardianship order granted
on (date-yyyy/mm/dd) for a period of (duration).

- ☐ is the subject of a permanent guardianship order granted on (date-yyyy/mm/dd).
- ☐ is the subject of a permanent guardianship agreement signed on (date-yyyy/mm/dd).

The child refuses to consent to the treatment described in the application.

The treatment being recommended by (name of physician or dentist) of (address) is in the best interest of the child because: _____.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) (Applicant's Signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta)

Form 15 Notice and Application for a Review

In the Alberta Court of Justice in the Matter of an
 Application under section ☐ 29 or ☐ 32 or ☐ 34 or ☐ 49
 of the *Child, Youth and Family Enhancement Act*.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd), cumulative time in
 care (duration) days
 _____, born (date-yyyy/mm/dd), cumulative time in
 care (duration) days
 _____, born (date-yyyy/mm/dd), cumulative time in
 care (duration) days

- 1 My name is (name of applicant).
- ☐ I am the child.
- ☐ My relationship to the child(ren) is (e.g. guardian). My
 birthdate is (date-yyyy/mm/dd). My address is (address).
- ☐ I have the authority to act for a director.

2 Notice

I am applying to the Court for a review of the (type of order) order regarding the child(ren).

The Court hearing will be
 at (address) on (date - yyyy/mm/dd). The Judge will hear
 my application as soon as possible after (time), in Courtroom
 number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

At the end of the hearing, the Judge may make the order. The Judge may make an order different from what I apply for. If you do not attend the Court hearing, the Judge may still make an order.

3 Application

I am applying for a review of the (type of order) order regarding the child(ren) granted on (date-yyyy/mm/dd) for a period of (duration).

- ☐ I am applying for an order to:
- ☐ renew the existing order for (duration) months.
 - ☐ vary the existing order.
 - ☐ terminate the existing order.
- ☐ I am applying to terminate the existing order and replace it with:
- ☐ a supervision order.
 - ☐ a temporary guardianship order.
 - ☐ a permanent guardianship order.

4 Affidavit

In support of my application, I make oath and say that:

I am applying for this review because: _____.

☐ I am the child, or a guardian, and I have not previously applied for a review of this order.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) (Applicant's Signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta))

Form 16

Notice and Application by a director to Terminate a Permanent Guardianship Order or Agreement

In the Alberta Court of Justice in the Matter of an
 Application under section 35 of the *Child,
 Youth and Family Enhancement Act*.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)

_____, born (date-yyyy/mm/dd)

1 My name is (name of applicant).

I have the authority to act for a director.

2 Notice

I am applying to the Court for an order terminating the permanent guardianship order or agreement regarding the child(ren). I will ask the Court to return the child(ren) to the care of (name), the former guardian.

The Court hearing will be at (address) on (date yyyy/mm/dd). The Judge will hear my application as soon as possible after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

At the end of the hearing, the Judge may make the order. The Judge may make an order different from what I apply for. If you do not attend the Court hearing, the Judge may still make an order.

3 Application

- ☐ I am applying for an order terminating the permanent guardianship order.
- ☐ I am applying for an order terminating the permanent guardianship agreement.

4 Affidavit

In support of my application, I make oath and say that:

- ☐ the permanent guardianship order was granted on (date-yyyy/mm/dd).
- ☐ the permanent guardianship agreement was signed on (date-yyyy/mm/dd).

I am satisfied that the child should be returned to the guardianship of (name of former guardian).

I am applying to terminate the permanent guardianship because: _____.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) (Applicant's Signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta)

Form 16.1
Notice and Application by a Former Guardian
to Terminate a Permanent Guardianship Order

In the Alberta Court of Justice
in the Matter of an Application under section 35.1
of the *Child, Youth and Family Enhancement Act*.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
_____, born (date-yyyy/mm/dd)
_____, born (date-yyyy/mm/dd)

1 My name is (name of applicant).

I was a guardian of the child(ren) immediately before the permanent guardianship order was made regarding the child(ren).

2 Notice

I am applying to the Court for an order terminating the permanent guardianship order regarding the child(ren). I will ask the Court to appoint me as guardian of the child(ren).

The Court hearing will be at (address) on (date-yyyy/mm/dd).
The Judge will hear my application as soon as possible
after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

At the end of the hearing, the Judge may make the order that I am applying for. The Judge may make an order different from what I apply for. If you do not attend the Court hearing, the Judge may still make an order.

3 Application

I am applying for an order terminating the permanent guardianship order and appointing me as guardian of the child(ren).

At the end of the hearing, if the Judge makes an order appointing me as a guardian, the Judge may also make a supervision order in conjunction with the guardianship order.

4 Affidavit

In support of my application, I make oath and say that:

The permanent guardianship order was granted
on (date-yyyy/mm/dd).

The child(ren) has (have) not been adopted.

It has been more than a year

- ☐ since the period for appealing the permanent guardianship order expired.
- ☐ since the appeal of the permanent guardianship has been disposed.

More than 2 years has elapsed since the last application I brought under this section has been disposed of.

I am capable of assuming and willing to assume the responsibilities of guardianship of the child(ren).

It is in the best interests of the child(ren) that I be appointed a guardian.

I am applying to terminate the permanent guardianship because: _____
_____.

SWORN BEFORE ME at the _____ of _____)
_____, in the Province of Alberta, the _____)
____ day of _____, _____.) (Applicant's Signature)
_____) (date-yyyy/mm/dd)
(Commissioner for Oaths _____)
in and for the Province of Alberta) _____)

Form 17

Appearance to Show Cause for Issuing a Secure Services Certificate and Notice and Application for Further Confinement

In the Alberta Court of Justice in the Matter of an
Application under section 43.1 of the *Child,
Youth and Family Enhancement Act*.

Regarding the child

_____, born (date-yyyy/mm/dd)

1 My name is (name of applicant).

I have the authority to act for a director.

2 Notice

I will be appearing in Court or before a Judge or Justice of the Peace.

The hearing will be at (address) on (date-yyyy/mm/dd).

The Judge/Justice of the Peace will hear my application as soon as possible after (time), in Courtroom number (number).

If you want to speak to the Judge/Justice of the Peace about my application, you must attend the hearing.

At the end of the hearing, the Judge/Justice of the Peace may make the order. The Judge/Justice of the Peace may make an order different from what I apply for. If you do not attend the Court hearing, the Judge/Justice of the Peace may still make an order.

The child may be represented by a lawyer at any appearance before the Court by referral to the Child and Youth Advocate. The nearest office of the Child and Youth Advocate is _____.

3 Application

I am appearing to show cause why a secure services certificate was issued.

☐ I am applying for a secure services order authorizing the confinement of the child for a further period of not more than 7 days.

4 Affidavit

In support of my application, I make oath and say that:

- ☐ the child is in the custody of a director but is not the subject of a custody agreement.
- ☐ the child is the subject of a custody agreement with a guardian dated (date-yyyy/mm/dd) which is in effect for a period of (duration), and the written consent of the guardian(s) is attached as an exhibit.
- ☐ the child is the subject of a supervision order granted on (date-yyyy/mm/dd) for a period of (duration), and the written consent of the guardian(s) is attached as an exhibit.
- ☐ the child is the subject of a temporary guardianship order granted on (date-yyyy/mm/dd) for a period of (duration).
- ☐ the child is the subject of a permanent guardianship order granted on (date-yyyy/mm/dd).
- ☐ the child is the subject of a permanent guardianship agreement signed on (date-yyyy/mm/dd).

- ☐ the child is the subject of a family enhancement agreement under section 8 dated (date-
yyyy/mm/dd) which is in effect for a period of (duration) and the written consent of the guardian(s) is attached as an exhibit.

The child was confined because:

- the child was in a condition presenting an immediate danger to the child or others as follows: _____;
- it was necessary to confine the child in order to stabilize and assess the child as follows: _____;
- less intrusive measures were not adequate to sufficiently reduce the danger as follows: _____.

The child requires further confinement to stabilize the child or to assess the child and prepare a secure services plan because:

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) (Applicant's signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta))

Form 18
Notice and Application for a Secure Services
Order or a Renewal of a Secure Services Order

In the Alberta Court of Justice in the Matter of an
 Application under section ☐ 44 or ☐ 44.1 of the *Child,
 Youth and Family Enhancement Act*.

Regarding the child

_____, born (date-yyyy/mm/dd)

- 1** My name is (name of applicant).
 I have the authority to act for a director.

2 Notice

I am applying to the Court for a secure services order regarding the child. I will ask the Court for an order to confine the child in a secure services facility.

The Court hearing will be at (address) on (date-yyyy/mm/dd).
The Judge will hear my application as soon as possible
after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must
attend the hearing.

**At the end of the hearing, the Judge may make the order. The Judge
may make an order different from what I apply for. If you do not
attend the Court hearing, the Judge may still make an order.**

The child may be represented by a lawyer at any appearance before
the Court by referral to the Child and Youth Advocate. The nearest
office of the Child and Youth Advocate is _____.

3 Application

- ☐ I am applying under section 44 for:
- ☐ a secure services order for (up to 5 days) days.
 - ☐ a continuation for (up to 5 days) days of the secure
services order granted on (date-yyyy/mm/dd).
 - ☐ I am applying under section 44.1 for a renewal for (up to 20
days) days of the secure services order granted on (date-
yyyy/mm/dd).

4 Affidavit

In support of my application, I make oath and say that the child:

- ☐ is in the custody of a director but is not a youth who is the
subject of a custody agreement under section 57.2(2) of the
Act.
- ☐ is the subject of a supervision order granted
on (date-yyyy/mm/dd) for a period of (duration).
- ☐ is the subject of a temporary guardianship order granted
on (date-yyyy/mm/dd) for a period of (duration).
- ☐ is the subject of a permanent guardianship order granted
on (date-yyyy/mm/dd).
- ☐ is the subject of a permanent guardianship agreement signed
on (date-yyyy/mm/dd).
- ☐ is the subject of a family enhancement agreement under
section 8 dated (date-yyyy/mm/dd) which is in effect for

a period of (duration) and the written consent of the guardian(s) is attached as an exhibit.

- ☐ The child requires confinement because:
- the child is in a condition presenting an immediate danger to the child or others as follows: _____;
 - it is necessary to confine the child in order to stabilize and assess the child as follows: _____;
 - less intrusive measures are not adequate to sufficiently reduce the danger as follows: _____.
- ☐ The child requires further confinement to stabilize the child or to assess the child and prepare a plan for services because: _____

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) (Applicant's signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta)

Form 19

Application for an Order to Enter, Search for, Apprehend and Return a Child to a Secure Services Facility

In the Alberta Court of Justice in the Matter of an
 Application under section 48 of the *Child,
 Youth and Family Enhancement Act*.

Regarding the child

_____, born (date-yyyy/mm/dd)

- 1 My name is (name of applicant).
 I have the authority to act for a director.

2 Application

I am applying for an order authorizing the director or *(name), and any peace officer called on to assist, to enter, by force if necessary, the place or premises specified in my affidavit below and to search for, apprehend and convey the child to any secure services facility and to detain the child while the child is being conveyed to a secure services facility.

*(*Fill in this space only if someone who is not a director's delegate will be apprehending the child.)*

3 Affidavit

In support of my application, I make oath and say that:

- ☐ The child is the subject of a secure services certificate that expires on (date-yyyy/mm/dd).
- ☐ The child is the subject of a secure services order that expires on (date-yyyy/mm/dd).

The child has left a secure services facility:

- ☐ when a leave of absence was not granted.
- ☐ under a leave of absence but has not returned within the time permitted under the leave of absence.

I have reasonable and probable grounds to believe that the child may be found at (address) because: _____.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) (Applicant's Signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta)

Form 20

In the Alberta Court of Justice
 in the Matter of

_____, born (date-yyyy/mm/dd)

A Child within the Meaning of the
Child, Youth and Family Enhancement Act

Heard Before

- ☐ The Honourable Justice _____ at (time)a.m./p.m. on
 _____, (day of the week), the
☐ Justice of the Peace _____ (number) day of
 _____ (month), (year)

at _____, Alberta.

**FACSIMILE OF AN ORDER TO ENTER, SEARCH
 FOR, APPREHEND AND RETURN A CHILD TO A
 SECURE SERVICES FACILITY**

(name of applicant), having authority to act for a director, has applied for an order authorizing the entry, by force if necessary, of

the place or premises specified in this order, to search for, apprehend and convey the child to any secure services facility and to detain the child while the child is being conveyed to a secure services facility;

AND on being satisfied that the requirements of section 48 of the Act have been complied with, and

- ☐ the child has left the secure services facility without a leave of absence;
- ☐ the child has not returned to the secure services facility from a leave of absence within the time prescribed;

AND I am satisfied that the child may be found at (place or premises);

AND I am satisfied that it may be necessary to use force to enter the above premises;

IT IS ORDERED THAT the director, or any person authorized by the director, may apprehend the child forthwith;

IT IS ORDERED THAT the director, or (name), and any peace officer called on to assist, may enter (place or premises) using force if necessary, to search for, apprehend and convey the child to any secure services facility and to detain the child while the child is being conveyed to a secure services facility.

Dated this ____ day of ____ at ____ in the Province of Alberta.

(name of justice or justice of the peace)

Form 21
Notice and Application for a
Private Guardianship Order

In the Alberta Court of Justice in the Matter of
an Application under section 52 of the *Child,*
Youth and Family Enhancement Act.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
_____, born (date-yyyy/mm/dd)
_____, born (date-yyyy/mm/dd)

1 My name is

(name of applicant). My birthdate is (date-yyyy/mm/dd).
My address is (address). My telephone number is (home
phone number, work phone number).

My name is (name of applicant). My birthdate is (date-
yyyy/mm/dd). My address is (address). My telephone
number is (home phone number, work phone number).

2 Notice

I(we) am(are) applying to the Court for a private guardianship
order regarding the child(ren). I(we) will ask the Court to make
me(us) a private guardian(s) to the child(ren).

The Court hearing will be at (address) on (date-
yyyy/mm/dd). The Judge will hear my application as soon as
possible after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must
attend the hearing.

**At the end of the hearing, the Judge may make the order.
The Judge may make an order different from what I
apply for. If you do not attend the Court hearing, the
Judge may still make an order.**

3 Application

I(we) am(are) applying for a private guardianship order regarding
the child(ren).

☐ I(we) am(are) applying for:

☐ an order terminating the guardianship of (name(s)).

☐ custody to be granted to (name(s)).

☐ an order of contact to be granted to (name(s)).

☐ an order to dispense with the consent of (name(s)).

☐ an order to dispense with the consent of the director.

Attached to this application are:

☐ a copy of the home study report

☐ a copy of the cultural connection plan, if the child(ren)
is(are) Indigenous.

The Court hearing will be at (address) on (date-yyyy/mm/dd).
 The Judge will hear my application as soon as possible
 after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must
 attend the hearing.

**At the end of the hearing, the Judge may make the order.
 The Judge may make an order different from what I
 apply for. If you do not attend the Court hearing, the
 Judge may still make an order.**

3 Consent of Applicant(s)

My(our) name is (name(s)).

I(we) consent to a director making this application for a private
 guardianship order on my(our) behalf.

(applicant's signature) (date-yyyy/mm/dd)

(witness's signature)

(applicant's signature) (date-yyyy/mm/dd)

(witness's signature)

4 Application

I am applying on behalf of the applicant(s), (name(s)), for a
 private guardianship order regarding the child(ren).

☐ I am applying for:

☐ an order terminating the guardianship of (name(s)).

☐ a custody order to be granted to (name(s)).

☐ an order of contact to be granted to (name(s)).

☐ an order to dispense with the consent of (name(s)).

Attached to this application are:

☐ a copy of the home study report

☐ a copy of the cultural connection plan, if the child(ren)
 is(are) Indigenous.

5 Affidavit

In support of the application, I make oath and say that:

The child is in the custody of a director or the subject of a temporary guardianship order or a permanent guardianship order or agreement.

The child has been in the continuous care of the applicant(s) since (date-yyyy/mm/dd).

To the best of my knowledge the following people are currently guardians to the child(ren) (name(s)).

I believe that the applicant(s) is(are) suitable, able and willing to assume private guardianship of the child(ren). The director is satisfied that it is in the best interests of the child(ren) for the child(ren) to be placed under the private guardianship of the applicant(s) and I consent to this application.

SWORN BEFORE ME at the _____ of _____, in the Province of Alberta, the _____ day of _____, _____.)
 _____.)
 (Commissioner for Oaths)
 in and for the Province of Alberta)

(Signature of director's delegate)
(date-yyyy/mm/dd)

Form 23 Notice and Application to Terminate a Private Guardianship Order

In the Alberta Court of Justice in the Matter of an
Application under section 57.1 of the *Child,
Youth and Family Enhancement Act*.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)

- 1 My name is (name of applicant).
 My birthdate is (date-yyyy/mm/dd).
 My address is (address).
 My telephone number is (home phone number,
 work phone number).
 I am a guardian of the child(ren).

2 Notice

I am applying to the Court for an order terminating the private guardianship order regarding the child(ren). I will ask the Court to terminate the private guardianship order.

The Court hearing will be at (address) on (date-yyyy/mm/dd).
 The Judge will hear my application as soon as possible
 after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must
 attend the hearing.

**At the end of the hearing, the Judge may make the order.
 The Judge may make an order different from what I
 apply for. If you do not attend the Court hearing, the
 Judge may still make an order.**

3 Application

I am applying for an order terminating the private guardianship
 order regarding the child(ren).

☐ I am applying for:

☐ an order to dispense with the consent of (list name(s))
 _____.

☐ an order to dispense with the consent of the director.

Attached to this application is copy of the home study report.

4 Affidavit

In support of the application, I make oath and say that:

The private guardianship order regarding the child(ren) was granted
 on (date-yyyy/mm/dd).

The private guardianship order named (list name(s)) as a
 guardian(s) of the child(ren).

I believe it is in the best interests of the child(ren) to terminate the
 private guardianship order because: _____.

To the best of my knowledge the following people are currently
 guardians to the child(ren) (name(s)).

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____) (Applicant's signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta)

Form 24
Consent by a Child 12 Years
of Age or Older

Note: Do not use this form to consent to an adoption. **Please Print**

1 Consent

My name is (name), born (date-yyyy/mm/dd).

My address is (address).

I know that (e.g. applicant's name or the director) is applying in Court for a (e.g. supervision, temporary guardianship, permanent guardianship, etc.) order for (duration) months and a (e.g. specified access, assessment, treatment programs, etc.) order about me.

- ☐ I have received legal advice from a lawyer about this consent.
- ☐ I have been informed of my right to ask a lawyer for legal advice, and have decided to consent without talking to a lawyer.

I understand what this order(s) means. I consent to the order(s).

(director's or Lawyer's Signature) (date-yyyy/mm/dd)

(Child's Signature)

2 Affidavit of Execution of a director or a Lawyer

My name is (name). My address is (address).

I make oath and say that:

- ☐ I have the authority to act for a director.
- ☐ I am a lawyer.

I am satisfied that:

- the child has the capability to understand and appreciate the nature and consequences of the consent;
- the child is informed about the nature and consequences of the consent; and
- the consent represents what the child wants.

I witnessed the child sign the consent form.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) (director's or lawyer's signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta)

Form 25 Consent by a Guardian

Note: Do not use this form to consent to an adoption. **Please Print**

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)
 _____, born (date-yyyy/mm/dd)

1 Consent

My name is (name).

My address is (address). I am a guardian of the child(ren).

I know that (e.g. applicant's name or the director) is applying in Court for a (e.g. supervision, temporary guardianship, permanent guardianship, etc.) order for (duration) months and a (e.g. specified access, assessment, treatment programs, etc.) order regarding the child(ren).

- ☐ I have received independent legal advice.
☐ I have been advised of my right to seek independent legal advice and have chosen to provide this consent without accessing independent legal advice.

I understand what this order(s) means. I consent to the order(s).

(director's or lawyer's signature) (date-yyyy/mm/dd)
(guardian's signature)

2 Affidavit of Execution of a director or a Lawyer

My name is (name). My address is (address).

I make oath and say that:

- ☐ I have the authority to act for a director.
☐ I am a lawyer.

I am satisfied that:

- the guardian has the capability to understand and appreciate the nature and consequences of the consent;
- the guardian is informed about the nature and consequences of the consent; and
- the consent represents what the guardian wants.

I witnessed the guardian sign the consent form.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____) (director's or lawyer's signature)
 _____) (date-yyyy/mm/dd)
 (Commissioner for Oaths)
 in and for the Province of Alberta)

Form 26 Notice and Application

In the Alberta Court of Justice in the Matter of an
Application under the *Child, Youth and
Family Enhancement Act*.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
_____, born (date-yyyy/mm/dd)
_____, born (date-yyyy/mm/dd)

1 My name is (name of applicant).

☐ I am the child.

☐ My relationship to the child(ren) is (e.g. guardian). My
birthdate is (date-yyyy/mm/dd). My address is (address).

2 Notice

I am applying to the Court for a (type of order) order regarding
the child(ren).

The Court hearing will be at (address) on (date
yyyy/mm/dd). The Judge will hear my application as soon as
possible after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must
attend the hearing.

**At the end of the hearing, the Judge may make the order. The Judge
may make an order different from what I apply for. If you do not
attend the Court hearing, the Judge may still make an order.**

3 Application

I am applying to the Court for a (type of order) order regarding
the child(ren).

4 Affidavit

In support of my application, I make oath and say that:

I am applying for this order because:_____.

SWORN BEFORE ME at the _____ of _____)
_____, in the Province of Alberta, the _____)
____ day of _____, _____.) (Applicant's Signature)
_____) (date-yyyy/mm/dd)
(Commissioner for Oaths _____)
in and for the Province of Alberta) _____

Form 27
Consent by a Child 12 Years of
Age or Older to Adoption

In the Court of King's Bench of Alberta
 Judicial Centre of _____

In the Matter of the *Child, Youth and*
Family Enhancement Act, Section 59

Regarding the child

 (name as on birth document) , born (date-yyyy/mm/dd)

2 Consent

My name is (print name) .

My address is (full mailing address) .

I know that (name(s) of adopting parent(s)) of (full mailing address) are applying to the Court for an adoption order about me.

1 I understand what an adoption order means.

2 I consent to the adoption order.

☐ I consent to have my name changed to (names) .

(Signature of director's delegate or lawyer)

(print name) (date – yyyy/mm/dd)

(child's signature)

(print name) (date – yyyy/mm/dd)

3 Affidavit of Execution of a director or a Lawyer

My name is (name of director's delegate or lawyer – please print) .

My address is (business address) .

I make oath and say that:

☐ I have the authority to act for a director.

☐ I am a lawyer.

1 I am satisfied that:

- the child has the capability to understand and appreciate the nature and consequences of the consent;
- the child is informed about the nature and consequences of the consent; and
- the consent represents what the child wants.

2 I witnessed the child sign the consent form.

SWORN BEFORE ME at the _____ of _____
 _____, in the Province of Alberta, the _____
 _____ day of _____, _____.)
 _____) (Signature of director's
 (Signature of Notary Public or _____) delegate or Lawyer)
 Commissioner for Oaths) _____)

Form 28
Consent by a Guardian to Adoption:
stepparent adoption or the adoption of a
child under permanent guardianship

In the Court of King's Bench of Alberta
 Judicial Centre of _____

In the Matter of the *Child, Youth and*
Family Enhancement Act, section 59

Regarding the child

_____ (name as on birth document) , born _____ (date-yyyy/mm/dd) .

1 Consent

My name is _____ (print name) .

My address is _____ (full mailing address) .

I know that _____ (name(s) of adopting parent(s)) of _____ (full mailing address) are applying to the Court for an adoption order regarding this child.

- I understand what an adoption order means.
- I understand that, unless I am the spouse or interdependent partner of the applicant, the order will end all my rights and responsibilities regarding the child.

☐ I am a guardian of the child. I understand that once I sign this consent the applicants become joint guardians of the child with me until an adoption order is granted.

OR

☐ I was a guardian before the applicant became the sole guardian of the child.

☐ I want to be served with the adoption application.

OR

☐ I do not want to be served with the adoption application.

☐ I want to be served with a Notice of Adoption Hearing.

OR

☐ I do not want to be served with a Notice of Adoption Hearing.

- I consent to the adoption order.
- I understand that I may cancel this consent within 10 days of my signing it by giving a written notice to a caseworker.

(Witness's signature) _____
(print name)

(date – yyyy/mm/dd)

(Guardian's signature) _____
(print name)

2 Affidavit of Execution

My name is (name of witness – please print) .

My address is (address) .

I make oath and say:

I witnessed the guardian sign this consent form.

SWORN BEFORE ME at the _____ of _____)
_____, in the Province of Alberta, the _____)
____ day of _____, _____.)
_____) _____
(Signature of Notary Public or)
Commissioner for Oaths) _____
(Witness's signature)

Form 29

Consent by a Guardian to Adoption of a Child Placed Directly by the Parent

In the Court of King's Bench of Alberta
Judicial Centre of _____

In the Matter of the *Child, Youth and
Family Enhancement Act*, section 59

Regarding the child

 (name as on birth document) , born (date-yyyy/mm/dd) .

1 Consent

My name is (print name) .

My address is (full mailing address) .

I know that (name(s) of adopting parent(s)) of (full mailing address) are applying to the Court for an adoption order regarding this child.

- A caseworker/lawyer has explained to me what an adoption order means.
- I understand that the order will end all my rights and responsibilities regarding the child.

I have been told about the options available to me for planning for the child and I know I can get counselling regarding the following options:

- I may choose to parent the child.
- I may choose to place the child for adoption using the services of a licensed adoption agency
- I may choose to place the child for adoption directly with a family member or any other person known to me.
- I may choose to place the child for adoption using the services of Children and Family Services.

☐ I am a guardian of the child. I understand that once I sign this consent the applicants become joint guardians of the child with me until an adoption order is granted.

OR

☐ I was a guardian before the applicant became the sole guardian of the child.

☐ I want to be served with the adoption application.

OR

☐ I do not want to be served with the adoption application.

☐ I want to be served with a Notice of Adoption Hearing.

OR

☐ I do not want to be served with a Notice of Adoption Hearing.

I choose to place my child for adoption directly with (name(s) of adopting parent(s)) who is(are) personally known to me. I further understand that before I sign this consent, I may request and review:

- a home study report prepared by a qualified person;
- the cultural connection plan, if the child is Indigenous;
- the results of a criminal record check, including a vulnerable sector search;
- the results of an intervention record check.

☐ I do not want to review the documents listed.

OR

☐ I have reviewed the documents

- I consent to the adoption order.

- I understand that I may cancel this consent within 10 days of signing it by giving a written notice to a caseworker.

(signature of director's delegate or lawyer) _____ (date-yyyy/mm/dd) _____
 (name of director's delegate or lawyer) _____
 (guardian's signature) _____ (date-yyyy/mm/dd) _____
 (name of guardian) _____

2 Affidavit of Execution of a director or a lawyer

My name is (director's delegate or lawyer's name) _____.

My address is (business address) _____.

I make oath and say:

☐ I have the authority to act for a director.
or

☐ I am a lawyer.

(a) I am satisfied that:

- the guardian has the capability to understand and appreciate the nature and consequences of the consent;
- the guardian is informed about the nature and consequences of the consent;
- the consent represents what the guardian wants.

(b) I have advised the guardian that before signing this consent, the guardian may request that the adopting parents provide the guardian with the following:

- a home study report prepared by a qualified person;
- the cultural connection plan, if the child is Indigenous;
- the results of a criminal record check, including a vulnerable sector search;
- the results of an intervention record check.

(c) I witnessed the guardian sign the consent form.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____.) (Signature of director's
 _____) delegate or lawyer)
 (signature of Notary Public or _____)
 Commissioner for Oaths) _____)

Form 30

Consent by a Guardian to Adoption: a child placed by a licensed adoption agency

In the Court of King's Bench of Alberta
Judicial Centre of _____

In the Matter of the *Child, Youth and
Family Enhancement Act*, section 59

1 Regarding the child

_____, (name as on birth document), born _____, (date-yyyy/mm/dd).

2 Consent

My name is _____, (print name).

My address is _____, (full mailing address).

I know that _____, (name(s) of adopting parent(s)) of _____, (full mailing address) are applying to the Court for an adoption order regarding this child.

- A caseworker/lawyer has explained to me what an adoption order means.
- I understand that the order will end all my rights and responsibilities regarding the child.

I have been told about the options available to me for planning for the child and I know I can get counselling regarding the following options:

- I may choose to parent the child;
- I may choose to place the child for adoption using the services of a licensed adoption agency;
- I may choose to place the child for adoption directly with a family member or any other person known to me;
- I may choose to place the child for adoption using the services of Children and Family Services.

☐ I am a guardian of the child. I understand that once I sign this consent the applicants become joint guardians of the child with me until an adoption order is granted.

OR

☐ I was a guardian before the applicant became the sole guardian of the child.

☐ I want to be served with the adoption application.

OR

☐ I do not want to be served with the adoption application.

☐ I want to be served with a Notice of Adoption Hearing.

OR

☐ I do not want to be served with a Notice of Adoption Hearing.

- I consent to the adoption order.
- I understand that I may cancel this consent within 10 days of signing it by giving a written notice to a caseworker.

_____, (Signature of director's delegate or lawyer) _____, (date – yyyy/mm/dd)

(Name of director's delegate or lawyer - print name)
(Guardian's Signature) (date – yyyy/mm/dd)
(Name of Guardian - print name)

3 Affidavit of Execution of a director or a lawyer

My name is (director's delegate or lawyer's name – please print).

My address is (business address).

I make oath and say:

- ☐ I have the authority to act for a director.
☐ I am a lawyer.

1 I am satisfied that:

- the guardian has the capability to understand and appreciate the nature and consequences of the consent;
- the guardian is informed about the nature and consequences of the consent;
- the consent represents what the guardian wants.

2 I witnessed the guardian sign the consent form.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____)
 _____) (Signature of director's
(Signature of Notary Public or) delegate or Lawyer)
Commissioner for Oaths))

Form 31 Application for Adoption Order

Child, Youth and Family Enhancement Act
 (section 62)

COURT FILE NUMBER

Clerk's stamp:

COURT OF KING'S BENCH OF ALBERTA

JUDICIAL CENTRE

APPLICANT(S)

DOCUMENT

APPLICATION FOR
ADOPTION ORDER

ADDRESS FOR SERVICE AND
 CONTACT INFORMATION OF
 PARTY FILING THIS DOCUMENT

CHILD TO BE ADOPTED:

*(full name of child to be
 adopted, as on birth document)*

DATE OF BIRTH: _____
BIRTH REGISTRATION NUMBER: _____

1 Application

By making this application, I (we) state:

- that I (we) am (are) adults who want to adopt this child.
- that to support my (our) application, I (we) have enclosed my (our) affidavit(s) and the other information required by section 63 of the *Child, Youth and Family Enhancement Act*.

I (We) respectfully request that the Court order the child's adoption by me (us) and that the child be given the name _____.

2 Signatures

_____ (signature of applicant)	_____ (print name) _____ (date-yyyy/mm/dd)
_____ (signature of applicant)	_____ (print name) _____ (date-yyyy/mm/dd)

Form 32 Notice of Objection to Adoption

Child, Youth and Family Enhancement Act
(section 64)

COURT FILE NUMBER _____ Clerk's stamp:
COURT OF KING'S BENCH OF ALBERTA
JUDICIAL CENTRE
APPLICANT(S)
DOCUMENT _____

NOTICE OF OBJECTION TO ADOPTION

ADDRESS FOR SERVICE AND
CONTACT INFORMATION OF
PARTY FILING THIS DOCUMENT

CHILD TO BE ADOPTED: _____
(full name of child to be
adopted, as on birth document)

DATE OF BIRTH: _____
BIRTH REGISTRATION NUMBER: _____

- 1 I was served with a copy of an application for adoption of this child on (date-yyyy/mm/dd).
- 2 I object to the application being considered without a Court hearing.
- 3 I understand that if I file this Notice of Objection to Adoption with the court clerk, a hearing will be held.
- 4 I understand the applicant must serve a Notice of Adoption Hearing on me and on all persons who were served with a copy of the application, unless a person requested not to be served with a Notice of Adoption Hearing.
- 5 I understand that the application for an adoption order will proceed without a hearing if no Notice of Objection to Adoption is filed, unless the judge orders a hearing.

Dated at (location), on (date-yyyy/mm/dd).

(signature of person objecting) (print name)
(mailing address) (phone number)
(fax number, if applicable)

If you object to the application being heard in the absence of the applicant or anyone else who was served with a copy of the application, you must file this Notice of Objection to Adoption with the court clerk within 10 days of being served.

Form 33 Notice of Adoption Hearing

Child, Youth and Family Enhancement Act
(section 64)

COURT FILE NUMBER

Clerk's stamp:

COURT OF KING'S BENCH OF ALBERTA

JUDICIAL CENTRE

APPLICANT(S)

DOCUMENT

**NOTICE OF
ADOPTION HEARING**

ADDRESS FOR SERVICE AND
CONTACT INFORMATION OF
PARTY FILING THIS DOCUMENT

CHILD TO BE ADOPTED:

*(full name of child to be
adopted, as on birth document)*

DATE OF BIRTH: _____

BIRTH REGISTRATION NUMBER: _____

NOTICE

I (We) will be applying to the Court for an adoption order under the *Child, Youth and Family Enhancement Act* regarding this child.

The application for an adoption order will be made to the Court as shown below:

Court Date (date) _____Time (time) _____Where (address) _____

Before Whom Presiding Justice in Chambers

WARNING

If you object to this application, you must attend the hearing. If you do not come to Court on the date and at the time shown above either in person or by your lawyer, the Court may make an Order of Adoption in your absence.

(signature of applicant)(print name)
(date-yyyy/mm/dd)(signature of applicant)(print name)
(date-yyyy/mm/dd)

Form 34
Adoption Order

Child, Youth and Family Enhancement Act
(sections 70 and 72)

COURT FILE NUMBER

Clerk's Stamp:

COURT OF KING'S BENCH OF ALBERTA

JUDICIAL CENTRE

APPLICANT(S)

DOCUMENT

ADOPTION ORDER

ADDRESS FOR SERVICE AND
CONTACT INFORMATION OF
PARTY FILING THIS DOCUMENT

DATE ON WHICH ORDER WAS PRONOUNCED: _____

NAME OF JUDGE WHO MADE THIS ORDER: _____

LOCATION OF HEARING: _____, Alberta

THIS COURT having received the application of (name(s) of applicant(s)) under the *Child, Youth and Family Enhancement Act* for an adoption order in respect of the child:

(full name of child to be adopted, as on birth document),
born (date-yyyy/mm/dd)
Birth Registration Number _____.

AND THIS COURT having heard the evidence presented, and being satisfied that:

- (a) the applicant(s) is (are) capable of assuming and willing to assume the responsibility of a parent toward the child, and
- (b) it is in the best interests of the child that the child be adopted by the applicant(s).

IT IS ORDERED THAT:

1. The application of (name(s) of applicant(s)) is granted and the child is, from and after the date of this order, the adopted child of the applicant(s) and the child shall hereafter bear the given name(s) and surname of (full name of child).
2. *(Other applicable terms)*.

Justice of the Court of King's Bench

Form 35
Notice and Application for a Child Support Order

In the Alberta Court of Justice in the Matter of an
Application under section 57.5 of the *Child,
Youth and Family Enhancement Act*.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd), ID # _____
_____, born (date-yyyy/mm/dd), ID # _____
_____, born (date-yyyy/mm/dd), ID # _____

1 My name is (name of applicant). I have the authority to act for a director.

2 Notice

I am applying to the Court for an order for child support regarding the children.

The Respondent is:

(name of parent), a parent of the child(ren)

(name of parent), a parent of the child(ren)

The Court hearing will be at (address) on (date-yyyy/mm/dd).
The Judge will hear my application as soon as possible
after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

If you do not attend the Court hearing, the Judge may still make any order that the Judge considers appropriate.

3 Application

I am applying for an order setting out terms as follows:

- ☐ the amount of child support payable
- ☐ how often child support payments are to be made
- ☐ that all child support payments are to be paid by the Respondent to the Director of Maintenance Enforcement
- ☐ that child support made retroactive to the date that the child
 - ☐ came into the custody of a director (date that child came into the custody of a director)
 - ☐ became the subject of a temporary guardianship order or a permanent guardianship agreement or order (date and type of order or agreement)
 - ☐ became the subject of an agreement under section 57.2 of the Act (date and type of agreement)

4 Affidavit

In support of my application, I make oath and say that:

(a) Financial information was requested from the Respondent as follows:

☐ On (date) the Respondent was provided with a copy of a Notice to Request Financial Disclosure. A copy of the Notice is attached as an exhibit.

☐ An Application for an Order for Financial Disclosure was heard on (date) and an Order was granted. A copy of the Order is attached as an exhibit.

(b) I have the following information respecting the Respondent's finances:

☐ The Respondent's financial information indicates an income of \$_____.

☐ The Respondent has not yet provided financial information, but I have the following information about the Respondent's financial situation: _____

I make this affidavit in support of an Application for a Child Support Order

SWORN BEFORE ME at the _____ of _____, in the Province of Alberta, the _____ day of _____, _____.)
 _____.) (Applicant's signature)
 (Commissioner for Oaths) _____) (date—yyyy/mm/dd)
 in and for the Province of Alberta) _____)

Form 36

Notice and Application for a Review of a Child Support Order

In the Alberta Court of Justice in the Matter of an
 Application under section 57.6 of the *Child,
 Youth and Family Enhancement Act*.

Regarding the child(ren)

_____, born (date-yyyymm/dd), ID # _____
 _____, born (date-yyyymm/dd), ID # _____
 _____, born (date-yyyymm/dd), ID # _____

1 Applicant

☐ My name is (name of applicant). I have the authority to act for a director.

- ☐ My name is (name of applicant). I am a parent who is required to provide child support under the order granted on (date-yyyy/mm/dd).
- ☐ My name is (name of applicant). I am a private guardian who is entitled under section 57.7 of the Act to receive child support in respect of the child. My private guardianship order was granted on (date-yyyy/mm/dd).

2 Notice

I am applying to the Court for an order to review the order for child support regarding the children granted on (date-yyyy/mm/dd).

The Respondent is:

- ☐ a director.
- ☐ (name of parent), a parent of the children.
- ☐ (name of private guardian), a private guardian who is entitled under section 57.7 of the Act to receive child support in respect of the child.

The Court hearing will be at (address) on (date-yyyy/mm/dd).

The Judge will hear my application as soon as possible after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must attend the hearing.

If you do not attend the Court hearing, the Judge may still make any order that the Judge considers appropriate respecting child support.

3 Application

I am applying for an order as follows:

- ☐ to vary the existing child support payable by asking the court to
- ☐ increase the amount of child support payable, or
- ☐ decrease the amount of child support payable
- ☐ to suspend the existing child support order
- ☐ to reduce or cancel any child support arrears
- ☐ to terminate the existing child support order

4 Affidavit

In support of my application(s), I make oath and say that:

The parent's ability to provide child support has substantially changed because: _____

I make this Affidavit in support of an Application for a Review of a Child Support Order.

SWORN BEFORE ME at the _____ of _____)
 _____, in the Province of Alberta, the _____)
 _____ day of _____, _____)
 _____) (Applicant's signature)
 (Commissioner for Oaths) (date-yyyy/mm/dd)
 in and for the Province of Alberta)

Form 37

Facsimile of Secure Services Order

In the Alberta Court of Justice
 in the Matter of

_____, born (date-yyyy/mm/dd)

A child within the meaning of the *Child, Youth and Family Enhancement Act*.

Heard Before

☐ The Honourable Justice _____ at (time)a.m./p.m. on (day of the week), the (number) day of _____
☐ Justice of the Peace _____ (month), (year)
 at _____, Alberta.

FACSIMILE OF SECURE SERVICES ORDER

(name of applicant), having authority to act for a director, has applied for a secure services order regarding the child;

AND on being satisfied that

The requirements of section 43.1 of the Act have been met, and the further confinement is necessary to stabilize the child or assess the child and prepare a plan for services,

IT IS ORDERED THAT the child shall be confined for a further period ending on (date).
(name of justice or justice of the peace)

Form 38**Notice and Application for a Review of Contact Terms
Under a Private Guardianship Order**

In the Alberta Court of Justice in the Matter of an
Application under section 56.2 of the *Child, Youth and
Family Enhancement Act*.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd) ,
_____, born (date-yyyy/mm/dd) ,
_____, born (date-yyyy/mm/dd) ,

1 My name is (name of applicant) .

- ☐ I am the child and I am 12 years of age or older.
- ☐ I have an order for contact with the child(ren).
- ☐ I am a guardian of the child(ren).
- ☐ I have a significant relationship with the child(ren).

2 Notice

I am applying to the Court for a review of the contact terms as
granted under the Private Guardianship Order granted
on (date-yyyy/mm/dd) regarding the child(ren).

The Court hearing will be at (address) on (date-yyyy/mm/dd) .
The Judge will hear my application as soon as possible
after (time) , in Courtroom number (number) .

If you want to speak to the Judge about my application, you must
attend the hearing.

**If you do not attend the Court hearing, the Judge may
still make any order that the Judge considers
appropriate.**

3 Application

I am applying for an order to:

- ☐ vary the terms respecting contact contained in the Private
Guardianship Order.

- ☐ terminate the terms respecting contact contained in the Private Guardianship Order.

4 Affidavit

In support of my application, I make oath and say that:
I believe the contact terms should be changed because: _____

SWORN BEFORE ME at the _____ of _____)
_____, in the Province of Alberta, the _____)
____ day of _____, _____)
_____) (Applicant's signature)
(Commissioner for Oaths _____) (date-yyyy/mm/dd)
in and for the Province of Alberta) _____)

Form 39

Notice and Application for an Order for Financial Disclosure

In the Alberta Court of Justice in the Matter of an
Application under section 57.8(2) of the *Child, Youth and
Family Enhancement Act*.

Regarding the child(ren)

_____, born (date-yyyy/mm/dd)
_____, born (date-yyyy/mm/dd)
_____, born (date-yyyy/mm/dd)

1 My name is (name of applicant). I have the authority to act
for a director.

2 Notice to (name of parent)

I am applying to the Court for an Order for Financial Disclosure
because you failed to comply with the Request for Financial
Disclosure served upon you on (date-yyyy/mm/dd).

The Court hearing will be at (address) on (date-yyyy/mm/dd).
The Judge will hear my application as soon as possible
after (time), in Courtroom number (number).

If you want to speak to the Judge about my application, you must
attend the hearing.

**If you do not attend the Court hearing, the Judge may
still make any order that the Judge considers
appropriate.**

3 Application

I am requesting an Order for the following financial disclosure:

- ☐ a copy of every personal income tax return filed by the parent for each of the 3 most recent taxation years;
- ☐ a copy of every notice of assessment and reassessment issued to the parent for each of the 3 most recent taxation years;
- ☐ where the parent is an employee, the 3 most recent statements of earnings indicating the total earnings paid in the year to date, including overtime or, where such statements are not provided by the employer, a letter from the parent's employer setting out that information, including the parent's rate of annual salary or remuneration;
- ☐ where the parent is self-employed, for the 3 most recent taxation years
 - ☐ the financial statements of the parent's business or professional practice, other than a partnership, and
 - ☐ a statement showing a breakdown of all salaries, wages, management fees or other payments or benefits paid to, or on behalf of, persons or corporations with whom the parent does not deal at arm's length;
- ☐ where the parent is a partner in a partnership, confirmation of the parent's income and draw from, and capital in, the partnership for its 3 most recent taxation years;
- ☐ where the parent controls a corporation or has an interest of 1% or more in a privately held corporation, for its 3 most recent taxation years
 - ☐ the financial statements of the corporation and its subsidiaries, and

- ☐ a statement showing a breakdown of all salaries, wages, management fees or other payments or benefits paid to, or on behalf of, persons or corporations with whom the corporation, and every related corporation, does not deal at arm's length;
- ☐ where the parent is a beneficiary under a trust, a copy of the trust settlement agreement and copies of the trust's 3 most recent financial statements;
- ☐ where the parent is a student, a statement indicating the total amount of student funding received during the current academic year, including loans, grants, bursaries, scholarships and living allowances;
- ☐ in addition to any income information that must be included, where the parent receives income from employment insurance, social assistance, a pension, workers' compensation, disability payments or any other source, the most recent statement of income indicating the total amount of income from the applicable source during the current year, or if such a statement is not provided, a letter from the appropriate authority stating the required information.

4 Affidavit

In support of my application, I make oath and say that:

I provided the parent with a Notice of Request for Financial Disclosure by:

- ☐ personal delivery on (date-yyyy/mm/dd)
- ☐ mail on (date-yyyy/mm/dd)
- ☐ leaving with an adult person at (address) on (date-yyyy/mm/dd)

A copy of the Notice of Request for Financial Disclosure is attached as an exhibit.

The Notice of Request for Financial Disclosure required disclosure of the requested documents by (date-yyyy/mm/dd).

The parent has failed to comply with the Request for Financial Disclosure by the required date.

SWORN BEFORE ME at the _____ of _____, in the Province of Alberta, the _____ day of _____, _____.)
 _____.) (Applicant's signature)
 (Commissioner for Oaths _____) (date-yyyy/mm/dd)
 in and for the Province of Alberta) _____)

Form 40
Notice of Appeal — Court of Justice Order

Child, Youth and Family Enhancement Act
 (section 114)

COURT FILE NUMBER _____ Clerk's Stamp:
 COURT OF KING'S BENCH OF ALBERTA
 JUDICIAL CENTRE _____
 APPELLANT(S) _____
 RESPONDENT(S) _____
 DOCUMENT _____

Notice of Appeal —
Court of Justice Order

Child, Youth and Family Enhancement Act

REGARDING THE CHILD(REN) _____

COURT OF JUSTICE ORDER
 MADE AT _____ [City or Town], Alberta

ADDRESS FOR SERVICE AND [ADDRESS]
 CONTACT INFORMATION OF Ph. [Phone#]
 PARTY FILING THIS DOCUMENT Fx. [Fax#]

NOTICE

The appellant has filed an appeal in this matter. You are a respondent. You have the right to state your side of this matter before the court.

To do so, you must attend at the initial court appearance shown below:

Court Date (date) _____
 Time (time) _____
 Where (address) _____
 Before Whom Presiding Justice in Chambers

At the initial court appearance, the court will set a date for the

appeal to be heard, provide further direction regarding the manner in which the appeal will be heard and address any other preliminary matters the parties may wish to raise with the court in advance of the appeal hearing, including any evidence the court may permit or require to be given.

Go to the end of this document to see what else you can do and when you must do it.

Nature of appeal to be put before the court:

1. The appellant appeals to the Court of King's Bench of Alberta the decision of Justice (name of justice, if known) of the Court of Justice sitting at (city/town), Alberta on (date of Court of Justice hearing), 20 (year). The Justice ordered (nature of the order being appealed).

Grounds on which the appeal is based:

2. _____

Remedy sought:

3. _____

4. In addition to the appeal of the decision of the Justice of the Court of Justice, the appellant will also request an order for the following other relief:
 - ☐ a stay of execution of the order appealed pending the hearing of the appeal;
 - ☐ permission to introduce new evidence at the hearing of the appeal;
 - ☐ other: _____.

Evidence to be used in support of this appeal:

5. The record of the evidence taken, including the transcript, and all other material in the possession of the Court of Justice that pertains to the matter being appealed.
6. Any further evidence that the court may require or permit to be given, including:
 - _____
 - _____

WARNING

If you do not come to court either in person or by your lawyer, the court may give the appellant(s) what they want in your absence. You will be bound by any order that the court makes, or another order might be given or other proceedings taken which the appellant(s) is/are entitled to without any further notice of them to you. If you want to state your side of this matter before the court, you or your lawyer must attend in court on the date and time shown above. If you intend to ask the court for permission to introduce new evidence when the appeal is heard or considered, you must give reasonable notice of your intention to the appellant.

Form 41
Notice of Appeal — Appeal Panel Decision

Child, Youth and Family Enhancement Act
 (section 120.1)

COURT FILE NUMBER

Clerk's Stamp:

COURT OF KING'S BENCH OF ALBERTA

JUDICIAL CENTRE _____

APPELLANT(S) _____

RESPONDENT(S) _____

DOCUMENT

Notice of Appeal —
Appeal Panel Decision

Child, Youth and Family Enhancement Act

ADDRESS FOR SERVICE AND
 CONTACT INFORMATION OF
 PARTY FILING THIS DOCUMENT

[ADDRESS]
 Ph. [Phone#]
 Fx. [Fax#]

NOTICE TO THE RESPONDENT(S)

The appellant has filed an appeal in this matter. You are a respondent. You have the right to state your side of this matter before the court.

To do so, you must attend at the initial court appearance shown below:

Court Date (date)

Time	<u>(time)</u>
Where	<u>(address)</u>
Before Whom	Presiding Justice in Chambers

At the initial court appearance, the court will set a date for the appeal to be heard, provide further direction regarding the manner in which the appeal will be heard and address any other preliminary matters that the parties may wish to raise with the court in advance of the appeal hearing, including any evidence the court may permit or require to be given.

Go to the end of this document to see what else you can do and when you must do it.

Nature of appeal to be put before the court:

1. The appellant appeals to the Court of King's Bench of Alberta the decision of the Appeal Panel made under the *Child, Youth and Family Enhancement Act* on (date of decision), 20 (year). The Appeal Panel decided that (nature of the decision being appealed).

Grounds on which the appeal is based:

2. _____

Remedy sought:

3. _____

4. In addition to the appeal of the decision of the Appeal Panel, the appellant will also request an order for the following other relief:
 - ☐ a stay of execution of the decision appealed pending the hearing of the appeal;
 - ☐ permission to introduce new evidence at the hearing of the appeal;
 - ☐ other: _____.

Evidence to be used in support of this appeal:

5. The record of the evidence before the Appeal Panel, including the transcript, if any.

6. Any further evidence that the court may require or permit to be given, including:

 _____.

WARNING

If you do not come to court either in person or by your lawyer, the court may give the appellant(s) what they want in your absence. You will be bound by any order that the court makes, or another order might be given or other proceedings taken that the appellant(s) is/are entitled to without any further notice of them to you. If you want to state your side of this matter before the court, you or your lawyer must attend in court on the date and time shown above. If you intend to ask the court for permission to introduce new evidence when the appeal is heard or considered, you must give reasonable notice of your intention to the appellant.

Form 42
Notice to Band of Private Guardianship Application

In the Alberta Court of Justice in the Matter of an
 Application under section 52 of the
Child, Youth and Family Enhancement Act

To: _____ (name of band)

Address: _____

Regarding the child(ren)

_____, born _____ (date-yyyy/mm/dd) .
 _____, born _____ (date-yyyy/mm/dd) .
 _____, born _____ (date-yyyy/mm/dd) .

1 Name of applicants

_____ (name of applicant) .
 _____ (name of applicant) .

2 Notice

- ☐ I(we) am(are) applying to the Court for a private guardianship order regarding the child(ren). I(we) will

ask the Court to make me(us) a private guardian(s) to the child(ren).

or

☐ I have the authority to act for a director. My name is _____.

I am applying to the Court on behalf of the applicant(s) for a private guardianship order regarding the child(ren). I will ask the Court to appoint the applicant(s) as a private guardian(s) to the child(ren).

The Court hearing will be at _____ (address) _____ on _____ (date - yyyy/mm/dd) . The Judge will hear this application as soon as possible after _____ (time) _____, in Court room number _____ (number).

If you want to speak to the Judge about this application, you must attend the hearing **the first time the matter is heard in Court.**

The Judge may make an order different from what I (we) apply for. If you do not attend the Court hearing the first time the matter is heard in Court, the Judge may still make an order.

3 Application

I(we) am(are) applying for a private guardianship order regarding the child(ren).

I(we) am(are) applying for:

- ☐ an order terminating the guardianship of _____ (name(s)) _____.
- ☐ custody to be granted to _____ (name(s)) _____.
- ☐ an order of contact to be granted to _____ (name(s)) _____.
- ☐ an order to dispense with the consent of _____ (name(s)) _____.
- ☐ an order seeking _____ (other) _____.

AR 39/2002 Sched.;145/2004;68/2008;276/2009;164/2010;
227/2011;31/2012;187/2013;207/2018;218/2022;
76/2023;98/2023



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